



CHAPTER iv.

An Act to extend the time for the construction of certain waterworks authorised by the Burnley Corporation Act 1908 to confer further powers upon the mayor aldermen and burgesses of the borough of Burnley in regard to their water undertaking and for other purposes.

A.D. 1916.

[17th May 1916.]

WHEREAS the mayor aldermen and burgesses of the county borough of Burnley (in this Act called "the Corporation") are supplying water within the said borough and areas adjacent thereto :

And whereas by the Burnley Corporation Act 1908 the Corporation were empowered to construct additional waterworks including a reservoir to be called the Hurstwood Reservoir and although considerable progress has been made with the construction of the said reservoir it may not be possible to complete the same within the time limited by the said Act which expires on the first day of August nineteen hundred and eighteen and it is expedient to extend that time :

And whereas owing to unforeseen engineering difficulties the estimate of expense for the construction of the said reservoir and the other works in connection therewith has been found to be insufficient and the moneys which the Corporation were authorised to raise for the purchase of lands and wayleaves and for the construction of the said waterworks have been exhausted and it is expedient that the Corporation be empowered to raise further moneys for the purpose of completing the said waterworks :

And whereas it is expedient to substitute for the water rents which the Corporation are authorised to demand and take within the borough the water rents specified in this Act and to

A.D. 1916. — make further provision in regard to the water undertaking of the Corporation :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title. 1. This Act may be cited as the Burnley Corporation Act 1916.

Interpre- 2. In this Act unless the subject or context otherwise tation. requires—

“The Corporation” means the mayor aldermen and burgesses of the county borough of Burnley ;

“The borough” means the county borough of Burnley ;

“The Act of 1871” means the Burnley Borough Improvement Act 1871 ;

“The Act of 1883” means the Burnley Borough Improvement Act 1883 ;

“The Order of 1896” means the Borough of Burnley Provisional Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 19) Act 1896 ;

“The Order of 1897” means the Borough of Burnley Provisional Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1897 ;

“The Act of 1900” means the Burnley Corporation Act 1900 ;

“The Act of 1908” means the Burnley Corporation Act, A.D. 1916.
1908;

“Statutory borrowing power” shall have the same meaning
as that assigned to it by the Act of 1908.

EXTENSION OF TIME.

3. The time limited by section 16 (Period for completion of works) of the Act of 1908 for the completion of the Hurstwood Reservoir and other works authorised by Part II. (Water) of that Act is hereby extended for the period of five years from the first day of August one thousand nine hundred and eighteen and that Act shall be read and have effect accordingly.

Extension
of time for
completion
of reservoir
and works.

ACCOMMODATION FOR WORKMEN.

4.—(1) The Corporation shall erect fit up and maintain or provide—

(a) Such huts or buildings for the accommodation of the workmen employed in and about the construction of the works authorised by the Act of 1908;

Accommo-
dation for
workmen
employed on
construction
of works.

(b) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building and hospital.

(2) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or otherwise.

(3) The medical officer of health of the county council of the administrative county of the county palatine of Lancaster (hereinafter in this section referred to as “the county council”) and the medical officer of health and inspector of nuisances of the rural district council of Burnley shall be entitled at any time to enter into and inspect and examine any accommodation

A.D. 1916. — afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Corporation shall give every such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the county council that the Corporation have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Corporation shall afford and maintain such accommodation as the county council may require. Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Corporation give notice to the county council that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board on the application of either of the parties to the difference and the Local Government Board may make such requirements (if any) in variation of the requirements of the county council as they may think fit.

(6) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the county council.

(7) Any expenses incurred by the county council in carrying out the provisions of this section shall be repaid to the county council by the Corporation and shall be recoverable as a debt due from the Corporation to the county council.

(8) The Corporation shall pay to the Local Government Board any expenses incurred by that Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connection with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses summoned by the inspector.

WATER RENTS.

A.D. 1916.

5.—(1) On and after the twenty-ninth day of September one thousand nine hundred and sixteen the following provisions shall apply within the borough in lieu of section 177 (Water rent for domestic purposes) of the Act of 1871 and section 30 (Amending clause 177 of the Act of 1871) of the Act of 1883 as amended by section 19 of the Act of 1908 Provided that all water rents and charges due and payable under the said sections in respect of any period before the said twenty-ninth day of September one thousand nine hundred and sixteen may be collected and recovered as if this subsection had not been enacted.

Rents for
supply of
water for
domestic
purposes.

(2) The Corporation shall at the request of the owner or occupier of any house or part of a house entitled under the provisions of the Act of 1871 to demand a supply of water for domestic purposes or of any other person so entitled as aforesaid furnish to such owner occupier or other person a sufficient supply of water for such domestic purposes at a rent not exceeding eight pounds per centum per annum on the gross estimated rental of the premises so supplied Provided nevertheless that the Corporation at the commencement of every financial year or half-year as they may determine shall make or cause to be made an estimate of the probable revenue and expenditure which will be received and incurred respectively during the year or half-year as the case may be and if such estimate without taking into account any sum paid to the reserve fund required to be provided out of the profits of the water undertaking by section 244 of the Act of 1871 or any amendment thereof shows that there will be a deficiency in the net revenue of the water undertaking for the year or half-year as the case may be it shall be lawful for the Corporation to charge a rent not exceeding ten pounds per centum per annum on such gross estimated rental Provided further that the Corporation shall not in any case be compelled to charge for water supplied for domestic purposes to any premises or part of any premises any less rent than twopence per week.

(3) The gross estimated rental of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor Provided that where the water rent is chargeable as aforesaid on a part only of any premises entered

A.D. 1916. in the valuation list such water rent shall be chargeable on a fairly apportioned part of the gross estimated rental of the whole premises ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

FINANCE.

Power to
borrow.

6.—(1) The Corporation may from time to time (in addition to any moneys which they are now authorised to borrow) borrow at interest for the purposes of this Act not exceeding the following sums (that is to say):—

(A) For the construction and completion of the Hurstwood Reservoir and the other waterworks authorised by the Act of 1908—

One hundred and sixty thousand pounds;

(B) For paying the costs charges and expenses of this Act—

The sum requisite for the purpose;

and in calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

(2) The Corporation shall pay off all moneys so borrowed for the purpose (A) above mentioned within sixty years from the date or dates of borrowing and for the purpose (B) above mentioned within five years from the date of the passing of this Act.

(3) The Corporation shall repay the moneys borrowed under this section and pay the interest thereon out of the revenue of the water undertaking or out of the borough fund and general rate.

Extending
provisions of
certain sec-
tions of Act
of 1871.

7. The provisions of section 477 (Regulations as to mortgages) except subsection (2) of that section and section 478 (Transfers of mortgages) of the Act of 1871 shall apply to all securities issued by the Corporation for moneys borrowed under this Act and the provisions of sections 480 (Power for mortgagees to obtain a receiver) as amended by Article III. of the Order of 1897 and 481 (Accounts open to mortgagees) of the Act of 1871 shall so far as the same remain in force and unrepealed at the passing of this Act apply to all moneys borrowed by the Corporation under this Act.

8. The following provisions of the Order of 1896 (namely) A.D. 1916.
 Article IV. (Power to borrow under Local Loans Act 1875) Extending
 Article V. (Repayment of borrowed money) Article VI. provisions of
 (Increase of Sinking Funds) and Article VIII. (Annual return Order of
 to the Local Government Board) shall mutatis mutandis apply 1896 as to
 to all moneys borrowed under the powers of this Act. sinking
 funds &c.

9. The following provisions of the Act of 1900 so far as Incorpora-
 the same are applicable are hereby incorporated with and shall tion of sec-
 apply to this Act as if the same with the necessary modifications tions of
 were enacted herein (namely):— Act of 1900.

Section 67 (Application of borrowed moneys);

Section 70 (Audit of accounts);

Section 72 (Inquiries by Local Government Board).

10. A person lending money to the Corporation under this Protection of
 Act shall not be bound to inquire as to the observance by the lender from
 Corporation of any of the provisions of this Act or be bound to inquiry.
 see to the application or be answerable for any loss misapplication
 or non-application of the money lent or of any part thereof.

11.—(1) Section 131 (Postponement of sinking fund &c.) Amendment
 of the Act of 1908 shall be and the same is hereby amended of section 131
 by the substitution of the words “one thousand nine hundred of Act of
 and twenty-one” for the words “one thousand nine hundred 1908.
 and thirteen” and that section shall be read and have effect
 accordingly.

(2) Any amount which at the passing of this Act may be
 standing to the credit of any sinking fund established under
 the Act of 1908 for the purpose of repaying moneys borrowed
 for the purchase of lands and wayleaves and for the con-
 struction of the waterworks by that Act authorised shall be
 applied by the Corporation towards the repayment of the
 moneys borrowed as aforesaid.

12. Notwithstanding anything to the contrary contained in Postpone-
 any previous Act relating to the Corporation or their water ment of
 undertaking or in this Act it shall not be obligatory upon the sinking
 Corporation to make the first payment to the sinking fund &c.
 or to pay the first instalment of principal for the repayment of
 money borrowed for the construction and completion of water-
 works under the provisions of the section of this Act whereof
 the marginal note is “Power to borrow” until the completion

A.D. 1916. — of the said waterworks or until the year one thousand nine hundred and twenty-one whichever shall first occur.

Power to
re-borrow.

13.—(1) The Corporation shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Article VII. (Power to re-borrow) of the Order of 1896 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

As to tem-
porary
borrowing.

14.—(1) The Corporation may from time to time for the purpose of providing temporarily for any current expenses that may be incurred by them in the execution of any Act of

Parliament or Provisional Order confirmed by or under any Act of Parliament borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person and in either case at such rate of interest as they may determine such sum as they may from time to time resolve not exceeding in the aggregate at any time an amount equal to one fourth of the total aggregate amount of the before-mentioned expenses for the immediately preceding financial year.

(2) Any amount borrowed under this section together with the interest thereon shall form a charge upon all the funds properties rates and revenues of the Corporation *pari passu* with all other mortgages stock or other securities affecting the same.

(3) It shall also be lawful for the Corporation to utilise for providing temporarily for any such expenses any sinking funds or reserve funds which they may have on hand crediting the said sinking funds or reserve funds with such fair rate of interest not being less than three per centum per annum as they may resolve.

(4) All sums borrowed by the Corporation under this section in respect of the current expenses of any financial year shall be repaid out of the revenue received by the Corporation in respect of such year.

(5) When the Corporation borrow money under this section—

(A) The treasurer of the borough shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

(B) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Corporation have failed to comply with the requirements of this section that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

A.D. 1916.

(6) The provisions of this section limiting the amount of the sums which the Corporation may borrow and the provisions of subsection (4) of this section requiring the repayment thereof out of the revenue referred to in that subsection shall not affect any lender or his security for the loan or overdraft and the interest thereon respectively or his right to obtain payment thereof from the Corporation.

(7) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and seventeen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

Restriction
on exercise
of borrowing
powers.

15. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act raise or borrow any money other than money required for paying the costs charges and expenses of this Act as hereinafter defined during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Costs of Act.

16. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation.

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